



CHAPTER ccx.

An Act for incorporating and conferring powers on the A.D. 1903.
Carmarthenshire Electric Power Company.

[11th August 1903.]

WHEREAS the providing of electrical generating stations and the erection of such buildings and works as are herein-after mentioned for the production transformation storage and distribution of electricity within the area of supply herein-after defined would be of public and local advantage :

And whereas the persons in this Act named with others are willing at their own expense to construct the electrical generating stations and buildings and it is expedient that they be incorporated into a Company (in this Act called “the Company”) and that powers should be conferred on them for the purpose and for acquiring certain lands for such generating stations buildings and works and generally for carrying out the objects and provisions of this Act :

And whereas a plan showing the lands which may be taken compulsorily under the powers of this Act with a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Carmarthen and are herein-after respectively referred to as the deposited plan and book of reference :

And whereas it is expedient that the Company be empowered to make charges for the supply of electricity and to raise capital and borrow money for the purposes of this Act :

And whereas it is expedient that powers should be conferred upon the Company to make contracts and agreements with local authorities and others for the supply of electrical energy in bulk or

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A.D. 1903. — otherwise and with railway and canal companies for the acquisition of easements for the placing of mains cables tubes pipes posts and wires along or adjacent to their lines of railway and canals as herein-after provided :

And whereas the aforesaid objects cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Carmarthenshire Electric Power Company Act 1903.

Application of Electric Lighting Acts. 2. The provisions of the Electric Lighting Act 1888 and the schedule to the Electric Lighting (Clauses) Act 1899 which are contained in the sections thereof herein-after mentioned shall not apply to the Company or their undertaking anything in any of the said Acts to the contrary notwithstanding (that is to say) :—

Sections 2 and 3 of the Act of 1888 and sections 2 3 5 7 8 9 21 to 29 30 so far as respects supply in bulk 31 to 35 41 48 75 78 83 and 84 of the schedule to the Act of 1899 :
But except as aforesaid the provisions of the said Act of 1888 and the said schedule are incorporated with and form part of this Act.

The provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the laying down and placing of any cables or other works in through under along or across the bed and foreshore of any river.

Incorporation of general Acts. 3. The Lands Clauses Acts and the Companies Clauses Consolidation Act 1845 Part I. (cancellation and surrender of shares) and Part III. (debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are subject to the provisions of this Act incorporated with and form part of this Act.

Interpretation. 4. In this Act unless the context otherwise requires—

The several words terms and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless there be something to the contrary contained therein ;

The expression “the undertaking” means the undertaking by this Act authorised ;

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The expression "the Company" means the Company incorporated by this Act who shall for the purposes of this Act be the undertakers within the meaning of the Electric Lighting Act 1882 and the Electric Lighting (Clauses) Act 1899 ;

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The expression "authorised distributor" means any local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament to give a general supply of energy within the area of supply or any part thereof.

5. David Evans Charles William Mansel Lewis Edward Daniel John Glasbrook John Aeron Thomas Thomas Seymour David John Walter Stowe Bright McLaren and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purpose of making and maintaining central generating stations and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Carmarthenshire Electric Power Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

Company incorporated.

6. Subject to the provisions of this Act the Company may acquire construct maintain use enlarge alter or discontinue the use of and may sell or otherwise dispose of lands buildings machinery plant and apparatus for the production generation storage regulation transformation measurement and supply of electrical energy and may also sell or otherwise dispose of all such lands buildings machinery appliances and other property.

General powers of Company.

LANDS &c.

7. The Company may subject to the provisions of this Act enter upon take hold and use the lands in the county of Carmarthen described in the First Schedule to this Act shown on the deposited plan and described in the deposited book of reference or any part or parts thereof and may use those lands or any portion thereof for the erection and establishment of stations for generating electrical energy with all necessary and convenient buildings engines dynamos apparatus and conveniences connected with such stations.

Lands for generating stations.

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Period for
compulsory
purchase of
lands.

8. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Storage and
distributing
works.

9. Subject to the provisions of this Act the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of electric and other mains storage and other batteries dynamos accumulators cables conductors services wires tubes pipes insulators meters reservoirs distributing cut-out and other boxes switches transformers lamps fittings motors and other apparatus for transmitting storing measuring regulating and distributing electrical energy for lighting and other purposes public and private or for converting the same into motive power heat or otherwise and may (by agreement) lay down and use pipes conduits and other channels of water supply for feeding or condensing purposes or other purposes connected with the undertaking of the Company.

Power to
purchase
lands by
agreement.

10. The Company may for the general purposes of their undertaking purchase and hold or take on lease (by agreement but not otherwise) in addition to the lands delineated on the deposited plan and described in the deposited book of reference any lands and hereditaments not exceeding in the whole sixty acres which the Company may from time to time require for the aforesaid purposes but the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands acquired under this section.

Easements
over lands
and property.

11. The Company may acquire by agreement easements for the placing of mains cables posts and wires over and under lands and property belonging to any company body or person and may make agreements with any companies bodies and persons for the supply of electricity by or to the Company.

Restriction
on taking
houses of
labouring
class.

12.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be

recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty. A.D. 1903.
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(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

CAPITAL.

13. The capital of the Company shall be six hundred thousand pounds in sixty thousand shares of ten pounds each. Capital.

14. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Shares not to be issued until one fifth paid.

15. One fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share. Calls.

16. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

17. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called "preferred half share" and the other shall be called "deferred half share" but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half Power to divide shares.

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Dividends on half shares.

18. The dividends which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have been payable on the entire share if the same had not been divided.

Dividend on preferred shares to be paid out of profits of year only.

19. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Half shares to be registered and certificates issued.

20. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it.

Terms of issue to be stated in certificates.

21. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share.

Forfeiture of preferred shares.

22. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the

authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest. A.D. 1903.

23. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company. Preferred shares not to be cancelled or surrendered.

24. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions herein-before contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share. Half shares to be half shares in capital.

25. When seventy-five thousand pounds of the capital of the Company shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of land for the purposes of the generating station or stations by this Act authorised and such sum shall be deemed to be the prescribed sum for the purposes of section 17 of the Lands Clauses Consolidation Act 1845 The deposit with the Board of Trade of a statutory declaration by two of the directors and the secretary of the Company that the said sum of seventy-five thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof. Portion of capital to be subscribed before compulsory powers put in force.

26. The Company may borrow on debenture or on mortgage of their undertaking any sum or sums not exceeding in the whole one third part of the amount of the share capital of the Company at the time actually issued and accepted but no part of any such sum or sums shall be borrowed until the shares in respect of which the borrowing power is exercised are issued and accepted as aforesaid and one half thereof is paid up and the Company shall have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares have been issued and As to borrowing power of Company.

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A.D. 1903. — accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share so issued and accepted has been paid on account thereof before or at the time of the issue or acceptance thereof and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

For appointment of a receiver.

27. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock.

28. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application of moneys.

29. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

APPOINTMENT OF DIRECTORS AND MEETINGS.

First ordinary meeting.

30. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of directors.

31. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time less than four nor more than seven.

Qualification of directors.

32. The qualification of a director shall be the possession in his own right of not less than one hundred shares.

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33. The quorum of a meeting of directors shall be three.

Quorum.

34. Mark Heaton Robinson Walter Stowe Bright McLaren Henry Graham Harris and four other duly qualified persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act (or nominated as aforesaid) or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act (or nominated as aforesaid) being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

First directors.

Election of directors.

SUPPLY.

35. Subject to the provisions of this Act the area of supply shall be the whole of the county of Carmarthen.

36. The powers of the Company for the supply of energy under this Act shall be subject to the following provisions:—

Conditions affecting supply.

- (1) Energy shall be supplied under this Act only—
 - (A) For supply in bulk to authorised distributors; and
 - (B) For providing power to any person or persons:
- (2) The energy supplied to authorised distributors may be used by them for lighting or other purposes and the energy supplied to any person or persons for power may be used by such person or persons for lighting any premises on any part of which the power is utilised but save as aforesaid the Company shall not supply energy for lighting purposes:
- (3) Energy shall not be supplied under this Act by the Company in any area being at the passing of this Act the area of supply of any authorised distributors except with the consent of those distributors but that consent shall not

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be unreasonably withheld. If any question arises whether that consent is unreasonably withheld that question shall be determined by the Board of Trade. The consent shall be deemed to be unreasonably withheld if the authorised distributors are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the Company are willing and in a position to give the supply :

- (4) If at any time after the passing of this Act any local authority company or person become authorised distributors in any area within the area of supply under this Act the Company shall be subject to any provisions which may be made by the Act or Provisional Order under which the distributors become authorised as to the taking over of any supply then given by the Company for use exclusively within the area of supply of the distributors or otherwise as to the powers of the Company to supply within that area and such provisions may be made in any such Provisional Order under the Electric Lighting Acts.

As to appli-
cation for
Provisional
Orders.

37. Nothing contained in this Act shall prevent the Company from applying and the Company may apply for Provisional Orders under the Electric Lighting Acts 1882 and 1888.

Company to
furnish sup-
ply of energy
in bulk to
distributors
within area
of supply.

38. The Company shall upon being required to do so by any authorised distributor give and continue to give to that distributor at such point or points within the area of supply of such distributor as he may reasonably require a supply of energy in bulk at a price not exceeding the prices stated in the Second Schedule to this Act and they shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such distributor at such point or points the maximum power with which such distributors may be entitled to be supplied under this Act subject to the conditions following (that is to say) :—

Every such distributor requiring a supply of energy shall—

Serve a notice upon the Company specifying the point at which such supply is required to be given and the maximum power required to be supplied and the day upon which such supply is required to commence (not being an earlier day than a reasonable time after the date of

the service of such notice having regard to the situation of the district and to the length of electric line required to be laid and plant required to be erected for affording such supply) ; and

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Enter into a written contract with the Company (if required by them so to do) to continue to receive and pay for a supply of energy for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty pounds per centum per annum on the outlay (excluding expenditure on generating plant and any electric line then laid) incurred by the Company in making provision for such supply :

The Company may charge for a supply of energy to such distributors either by the actual amount of energy so supplied or by the electrical quantity contained in the supply or by such other method as may be agreed between the Company and such distributors :

Provided that the Company shall grant to any such distributors or persons as favourable terms and conditions for the supply of electricity as those granted by the Company to any other authorised distributors or persons whose circumstances are similar.

If any difference arises under this section such difference shall be determined by arbitration.

39. Whenever the Company make default in supplying energy in bulk to any authorised distributor to whom they may be and are under this Act required to supply energy in bulk in accordance with the foregoing provisions of this Act they shall be liable in respect of each default to a penalty not exceeding ten pounds for each day on which the default occurs :

Penalty for failure to supply in bulk.

Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of five hundred pounds And provided also that in no case shall any penalty be inflicted in respect of any default if the court are of opinion that the default was caused by inevitable accident or force majeure or was of so slight and unimportant a character as not materially to affect the value of the supply.

40. The Company shall give a supply of energy to any person who requires a supply which may be given by this Act other than a supply in bulk upon that person entering into a binding agreement

Arbitration as regards supply.

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A.D. 1903 — to take the energy upon such terms as failing agreement shall be fixed by a single arbitrator appointed by the Board of Trade and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbitrator shall have regard to the following amongst other considerations :—

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take energy :
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy :
- (3) The capital expenditure in connection with the supply of such energy :
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

Notice of dis-
continuance
of supply.

41. Any authorised distributor or person supplied with energy by the Company under this Act who is desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of his intention to discontinue to receive such supply. Such notice may be given so as to expire at the end of the period for which the distributor or person has contracted to continue to receive and pay for such supply or at any subsequent date.

Maximum
power.

42. The maximum power with which any such authorised distributor or person shall be entitled to be supplied shall be of such amount as he may demand to be supplied with not exceeding what may be reasonably anticipated as the maximum consumption.

If any difference arises between any such authorised distributor or person and the Company as to what may be reasonably anticipated as the consumption of such authorised distributor or person such difference shall be determined by a single arbitrator to be appointed by the Board of Trade.

As to route¹

43.—(1) Any electric lines laid down in any street by the Company under this Act shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the local authority or as failing agreement shall be settled by the Board of Trade. And the Company shall show on the plan of the works to be served on such local authority in accordance with the provisions of the Electric

Lighting (Clauses) Act 1899 incorporated with this Act the route proposed to be taken and the dimensions and position of the proposed trench. A.D. 1903.

Where the local authority of any borough or urban district object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of such borough or district and indicate an alternative route or deviation which in the opinion of the Board of Trade is reasonably practicable and does not involve undue increase of expenditure such alternative route or deviation shall be adopted. Provided nevertheless that the provisions of this subsection shall not take away or prejudicially affect the rights of the Postmaster-General under section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of such alternative route or deviation as though it were the route originally proposed by the Company.

(2) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the local authority in the matter has been unreasonable be paid by the Company.

44.—(1) The Board of Trade may on the application of the Company or of any authorised distributors or persons to whom the Company is supplying energy under this Act appoint and keep appointed one or more competent and impartial person or persons to be an electric inspector or electric inspectors under this Act and the Board of Trade may prescribe the fees to be taken by any such inspector and these fees shall be accounted for and applied as may be directed by the Board of Trade. Appointment of electric inspectors.

(2) The Company shall whenever reasonably required by any local authority through whose district any trunk main is laid test and furnish a record of the testing of the portion of main within their district and in case the Company fail to comply with the provisions of this subsection any such local authority may apply to the Board of Trade to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing.

45. Subject to the provisions of this Act the Company on the one hand and any person on the other hand may enter into and carry into effect contracts agreements or arrangements for or with Agreements for supply of energy.

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— such price and on such terms and conditions as may be agreed and
the Company may supply such energy accordingly.

PRICES AND DIVIDEND.

Maximum
prices.

46. The prices to be charged by the Company for energy supplied by them shall not exceed those stated in that behalf in the Second Schedule hereto.

Relation be-
tween price
and dividend.

47.—(1) Except as herein-after provided the dividend payable by the Company on the capital of the Company in any year shall not exceed eight pounds in respect of every hundred pounds paid up of such capital and that rate of dividend is herein-after referred to as “the standard rate of dividend.”

(2) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is less than twopence and one halfpenny per unit (herein-after referred to as “the standard price”) the dividend which the Company is authorised to pay in that year may be increased in the ratio of four shillings per centum in respect of every one and a quarter per centum by which the average price charged by the Company has been below the standard price.

(3) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is more than the standard price the dividend which the Company is authorised to pay in that year shall be reduced below the standard rate of dividend in the ratio of four shillings per centum for every one and a quarter per centum by which the average price so obtained by the Company has been above the standard price.

(4) The Company may in addition to the dividends authorised under this Act make good any deficiency in any previous dividends which have fallen below the standard rate of dividend.

(5) The Company shall not in any case be entitled to charge for energy supplied under this Act any higher price than the maximum prices stated in this Act.

Revision of
prices.

48.—(1) The Board of Trade at any time after the expiration of a period of ten years from the passing of this Act on the application of the Company or of any three or more authorised distributors to whom electricity is supplied by the Company in bulk under this Act or of any twenty persons to whom electricity is otherwise supplied by the Company under this Act may revise the maximum prices contained in the Second Schedule to this Act and

the relation between price and dividend as fixed by this Act and also the standard price as so fixed. A.D. 1903.

(2) The Board of Trade may if they think fit on the like application make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision the Board of Trade may modify the provisions of this Act both as to price and the relation between price and dividend so far as may be necessary to carry out their decisions on the revision.

PROTECTIVE PROVISIONS.

49. For the protection of the county council of the county of Carmarthen or any committee of the council from any district within the area of supply (in this section called "the county council") and of the roads streets and bridges sewers pipes conduits and other property vested in and under the jurisdiction of the county council at the time of executing the works under this Act the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated therewith have effect unless otherwise agreed on between the county council and the Company :—

For protection of county council of Carmarthen.

(1) Nothing in this Act contained or incorporated therewith shall take away or abridge any power vested or to be vested in the county council to construct build lay repair maintain open or break up alter enlarge improve divert relay or reconstruct any road street bridge or any sewer drain pipe channel conduit or water or other works or any other powers of the county council and the county council shall not be liable to make any compensation for any loss or injury which may be occasioned to the Company by reason of the exercise of any such power as aforesaid :

(2) Before commencing any work other than that of repairing the surface of any road street or bridge (of which repairs no notice shall be required) whereby any pipe wire cable electric line box or other apparatus of the Company may be interfered with the county council shall (except in cases of emergency in which cases notice shall be given thereafter as soon as may be) give the Company notice of their intention to commence such work specifying the time at which the commencement will be made such notice to be

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given fourteen days at least before the commencement of the work. Provided that in case of the construction of a new or the reconstruction rebuilding or widening of an existing road street or bridge one month's notice shall be given :

(3) In the event of the county council executing any work as aforesaid involving interference with any pipe wire cable electric line box or other apparatus of the Company the Company shall subject to the provisions of the next following subsection in addition to giving effect to any other provisions contained in this Act for the protection of roads streets and bridges and works therein within twenty-eight days from the despatch of a notice by the county council cut off the electric current from and at their own cost alter relay or where necessary remove temporarily or permanently as they may be required such pipe wire cable electric line box apparatus or other property to suit the new or changed conditions. And in the event of the Company failing within fourteen days to proceed to comply with the requirements of such notice or failing to carry out the same with all proper despatch the county council shall be entitled to carry out the works themselves in such manner as they shall consider expedient and to recover the cost thereof from the Company but in either case the county council shall at the Company's expense afford the Company reasonable temporary facilities for continuing the use of their mains and other property during the execution of any such works as aforesaid and all reasonable facilities for relaying or replacing the same or others substituted therefor :

(4) When any road street or bridge in which the pipes wires cables electric lines boxes or other apparatus or property of the Company shall be laid is to be opened up by the county council or by any contractor or surveyor acting under their authority the Company upon receiving three days' clear notice thereof at their head office or in cases of emergency such shorter notice as may be practicable shall send to the place specified in the said notice a competent workman superintendent or other qualified person to point out the position and level of the Company's pipes wires cables electric lines boxes or other works and give such information as may be desired by the county council to enable the work of the county council or persons aforesaid

to be carried out expeditiously and in safety and all such operations shall be executed with reasonable expedition at the cost of the county council and so as to cause as little inconvenience to the Company as possible: A.D. 1903.

- (5) Before the Company shall interfere with any of the roads streets or bridges sewers pipes waterworks channels and conduits or other property which are or may be under the jurisdiction of or vested in the county council the Company shall apply in writing to the county council for their consent to the proposed works and shall submit along with such application such plans as are prescribed by the general Acts incorporated herewith showing the manner in which such proposed works are to be executed and no such works shall be commenced by the Company without the consent of the county council but such consent shall not be unreasonably withheld or delayed. The determination of the county council on any application by the Company for their consent shall be intimated to the Company within one month from the date of receipt of such application and in the event of no intimation having been given before the expiry of the said month the county council shall be deemed to have consented and in the event of any refusal the reasonableness or unreasonableness of such refusal shall be determined by the Board of Trade in manner prescribed by this section. The county council shall be entitled to require as a condition of their giving such consent that the Company shall comply with such reasonable regulations which the county council are hereby authorised to make in regard to the position and level in which the Company's pipes wires cables or electric lines shall be laid the convenience of the traffic and the protection of any works or property of the county council the position and level of the street or switch boxes and other apparatus of the Company the protection of such street or switch boxes and the prevention of accumulation of gas therein and as to the dates and hours for opening and examining the same and the method of carrying out the proposed works and the method of restoring and maintaining such roads and streets for the period after mentioned. All works of the Company so far as laid on or under any road street or public way shall to the reasonable satisfaction of the county council be constructed of such strength as shall be fitted to support

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the weight of the heaviest traffic without injury and the Company shall not be entitled to discharge or emit from any part of their works any water steam or other matter or thing so as to cause danger or avoidable annoyance to traffic No overhead wires along across or by the side of any of the roads streets or bridges shall be permitted without the consent of the county council to be given or withheld at their absolute discretion and where such consent is given the county council may attach thereto such conditions as may be prescribed in any regulations to be made by them or such other or further conditions as they may consider expedient in the special circumstances of any case All electric lines to be constructed or laid by the Company in on under or by the side of any main road repairable by the county council shall unless otherwise required by the Board of Trade be constructed and laid at the side thereof which the county council shall by writing under the hand of their surveyor direct and shall not without the written consent of such surveyor be constructed or laid in upon or across any bridge or arch connected therewith but shall be attached to the outside of such bridge in such position and manner as the said surveyor shall in writing direct:

- (6) Before the Company shall commence any work for which the consent of the county council has been obtained or any repair renewal or amendment for which such consent is not required the Company shall (except in case of emergency in which case notice shall be given thereafter as soon as may be) give the county council notice of their intention to commence such work specifying the time at which the commencement will be made which notice shall be given five days at least before the commencement of the work and the Company shall execute the same under the superintendence of a qualified person appointed by and responsible to the county council who shall have power to prescribe his duties and whose reasonable remuneration so far as the same may be incurred in respect of construction shall be repaid to them by the Company and the Company shall always complete such work with all reasonable expedition and cause as little damage or inconvenience as circumstances admit If any diversion of pipes of the county council is at any time rendered necessary by reason of the Company's

operations new pipes with all proper valves scour drains and other apparatus and things shall at the expense of the Company be provided laid fitted and jointed under the superintendence and to the satisfaction of the county council before the existing pipes apparatus and things are interfered with: A.D. 1903.

- (7) The Company shall make full compensation to the county council for all loss or damage which may occur to the mains pipes apparatus or other property of the county council owing to the increase of any powers by this Act conferred upon the Company including damage due to fusion or any other damage caused by the exercise of any of the powers by this Act conferred upon the Company:
- (8) The Company shall free of charge supply to the county council and to the district committee (if any) of each district within the area of supply one copy of the map and sections to be made as mentioned in section 60 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as the same relate to the district under the county council jurisdiction and shall once in every year cause the said copies to be duly corrected to date and any reasonable cost incurred by the county council in connection with the examination of such map and sections shall be paid by the Company:
- (9) In the event of the abandonment by the Company of any portion of the works by this Act authorised subsequently to the construction thereof the Company shall if required by notice in writing from the county council forthwith remove the pipes wires cables electric lines boxes and other apparatus and property so abandoned then being in under over upon along or across the roads streets or bridges of the county council and reinstate the roads streets and bridges and any pipes sewers or works therein affected by the operations of the Company to the reasonable satisfaction of the county council and if the Company shall for three months neglect or delay so to do the county council may themselves remove the works of the Company and reinstate such roads streets bridges and any pipes sewers or works therein and recover the cost of so doing from the Company and the county council may sell the works removed and apply the proceeds in reimbursement of their costs and outlays which shall be a first and preferable charge thereon:

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- (10) Electric lines shall be so laid and maintained by the Company as not unnecessarily to interfere with the traffic of any main road or bridge or any approaches thereto :
- (11) The county council shall not be liable for any injury which may be occasioned to the electric lines of the Company laid in any main road repairable by the county council or along any bridge or the approaches thereto by the reasonable acts of the council in repairing such main road bridge or approaches :
- (12) Any additional reasonable expense incurred by the county council in maintaining or repairing or in executing any diversion improvement renewal alteration or removal of any road bridge or approaches by reason of the existence of any electric lines of the Company in under upon alongside or near to any such road bridge or approaches shall be borne by and may be recovered by the county council from the Company :
- (13) The Company shall to the reasonable satisfaction of the surveyor to the county council keep such portion of the main roads bridges and approaches as shall be broken up by the Company for the purpose of constructing laying or repairing any works in good repair for six months after reinstating and making good the same :
- (14) If any difference shall arise between the Company and the county council as to the reasonableness of a notice or request the matter in dispute shall be settled by an arbitrator to be mutually appointed or failing such appointment by an engineer or other person to be appointed by the Board of Trade on the application of either party and the reasonable expenses incurred by any county council in relation to any arbitration or reference under this section shall be paid by the Company except in the event of the arbitrator certifying that the county council has been unreasonable in which case the expenses of the arbitration or reference (including the expenses of the parties) shall be borne and paid as the arbitrator may direct :

Section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not apply as between the Company and the county council.

50. For the protection of the urban district council of Llanelly (herein-after referred to as "the district council") the following provisions shall have effect (that is to say) :—

A.D. 1903.
 For protec-
 tion of urban
 district
 council of
 Llanelly.

The Company shall not either directly or indirectly except as herein-after provided supply energy for any purpose to or within the district of Llanelly and the areas coloured red and shown on a plan marked No. 2 dated the fifteenth day of June one thousand nine hundred and three and signed by the Right Honourable the Earl of Morley the Chairman of Committees of the House of Lords to which the Bill for this Act was referred except with the consent in writing of the district council under their common seal and subject to such terms and conditions as the district council may attach to any such consent nor shall the Company without such consent as aforesaid exercise any of the powers of this Act or of the principal Acts in reference to any street within the urban district of Llanelly and the areas before mentioned Provided that such consent shall not be unreasonably withheld.

If any difference shall arise upon any matter in this subsection or as to the reasonableness of the district council withholding any consent or as to any of the proposals of the district council the same shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

51. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply:—

For protec-
 tion of Great
 Western
 Railway
 Company.

(1) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across or under the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to plans and sections previously submitted to and approved by him in writing and if the same shall not have been so approved by him within twenty-eight days of such

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—

submission he shall be deemed to have disapproved thereof so as to enable the matter to be forthwith referred to arbitration :

- (2) All such works of the Company shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains pipes apparatus or other works require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company :
- (3) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company twenty-eight days notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge then on giving as long a notice as possible divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that such works shall be executed without unduly interfering with the electric supply of the Company :
- (4) Any additional expense which the Great Western Company may reasonably and properly incur in widening or altering their railways or works by reason of the existence of any electric lines of the Company across or under the same shall be paid by the Company :

(5) The Company shall pay the cost of such additions to or alterations in the earth or metallic circuits of the Great Western Company as the Board of Trade may consider necessary to prevent interference with the signals and apparatus of the Great Western Company by reason of the cables and electric lines of the Company crossing the railways bridges and property of the Great Western Company: A.D. 1903.

(6) Any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

52. In the event of the Company acquiring under the provisions of this Act the lands shown on the deposited plans adjoining the South Wales Railway of the Great Western Railway they shall at any time thereafter on receiving three months' notice in writing under the hand of the secretary of that company convey to the Great Western Railway Company at the same price per acre as the Company shall pay for the acquisition thereof so much of the lands which adjoin the said railway as is shown by a pink colour on the plan signed by James Charles Inglis on behalf of the Great Western Railway Company and Henry Graham Harris on behalf of the Company containing by admeasurement one rood and four perches or thereabouts. For further protection of Great Western Railway Company.

53. The Company shall not without the consent in writing of James Francis Hughes Buckley John Beavan Phillips and Hugh William Waddell erect a station for generating electrical energy within five hundred yards of the properties numbered 5 6 and 7 on the deposited plans and described in the deposited book of reference in the parish of Llanelly Rural. For protection of James Francis Hughes Buckley John Beavan Phillips and Hugh William Waddell.

54. The Company and the proprietors or trustees of any canal or navigation or any other company or person may enter into and carry into effect contracts agreements and arrangements for and with respect to the supply of water to the Company for condensing and other purposes of their undertaking by any such proprietors trustees company or person. Agreements with regard to supply of water.

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Act, 1903.

A.D. 1903.

SUPPLEMENTAL.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Board of
Trade.

55. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Cables or
wires under
tidal waters
to be laid
with approval
of Board of
Trade.

56. Notwithstanding anything contained in this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

Saving rights
of Crown in
foreshore.

57. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Transfer of
undertakings
of local
authorities

58.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888

shall have been granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such Provisional Order shall apply to the supply of electricity by the Company within the area of supply as defined by such Order. Provided that (A) in the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith and (B) none of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purposes of supplying any other portions of the Company's area of supply.

A.D. 1903.
and others
to Company.

(2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

59. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions herein-after stated (that is to say):—

Power to
pay interest
out of capital
during con-
struction.

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the

[Ch. ccx.] *Carmarthenshire Electric Power Company* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

Company that one fifth of the share capital authorised by this Act has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :
- (C) The aggregate amount to be so paid for interest shall not exceed fifteen thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section :

Save as herein-before set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Cesser of
powers in
case of works
not being
completed.

60. If within two years from the date of the passing of this Act the Company have not substantially commenced their works for the purpose of carrying out their powers under this Act and if within four years after the date of the passing of this Act the Company have not erected a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply therefrom the Board of Trade may order that the powers of the Company under this Act shall cease as to the whole or any portion of the area of supply and on any such order being made these powers shall cease accordingly.

Provisions as
to general
Acts.

61. Nothing in this Act shall exempt the Company or their undertaking from the provisions of or deprive the Company of the

benefits of any general Act relating to electricity or to the supply of or price to be charged for energy which may be passed after the commencement of this Act. A.D. 1903.

62. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company. Costs of Act.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

LANDS FOR GENERATING OR POWER STATIONS.

PONTYBEREM SITE.—Certain lands situated in the parish of Llannon in the rural district of Llanelly in the same county ten and a half acres or thereabouts in extent comprising the whole of the fields or enclosures numbered 530 531 and 532 and part of 529 on the $\frac{1}{2500}$ Ordnance map (Carmarthenshire 1887 edition) bounded on the north by the River Gwendraeth-Fawr on the south by the private road leading from the village of Pontyberem to the said fields or enclosures and the embankment of the Barry Port and Gwendraeth Valley Railway (mineral line) on the west by the roadway numbered 528 on the said Ordnance map and on the east by the plot or enclosure numbered 533 on the said Ordnance map.

TIR-Y-DAIL SITE.—Certain lands situated in the parish of Llandybie in the rural district of Llandilo Fawr in the same county nineteen and three-quarter acres or thereabouts in extent comprising the fields or enclosures numbered 2929 and 2920 on the $\frac{1}{2500}$ Ordnance map (1895 edition) bounded on the north by the main road leading from Tir-y-dail Station to Gorslas on the west by the River Loughor on the east by the Llanelly Llandilo and Llandovery section of the Great Western and London and North Western Joint Railway and on the south by the field or enclosure numbered 2916 on the said Ordnance map.

SAINT CLEARS SITE.—Certain lands situated in the parish of Saint Clears in the rural district of Carmarthen in the same county five acres or thereabouts in extent comprising the field or enclosure numbered 668 on the $\frac{1}{2500}$ Ordnance map (1889 edition) bounded on the north by the main line of the Great Western Railway Company on the west by the main road leading from Saint Clears to Llanboidy on the east by the River Afon-Cynin and on the south by a brook feeding the above-mentioned river.

CARMARTHEN SITE.—Certain lands and property known as the Carmarthen Tin Plate Works situated in the parish of Saint Peter in the

A.D. 1903 — borough of Carmarthen in the same county seven acres or thereabouts in extent comprising the plot numbered 806 on the $\frac{1}{2500}$ Ordnance map (1890 edition) and including the private road connecting the lands and property numbered 830 on the said Ordnance map with the public road from Carmarthen to Llandilo bounded on the north-west by the fields or enclosures numbered 807 805 830 and 832 on the said Ordnance map on the south-west by the public road marked 834 on the said Ordnance map on the north-east by the plot numbered 808 on the said Ordnance map and on the south-east by the Carmarthen and Cardigan branch of the Great Western Railway and by the road marked 834 on the said Ordnance map.]

THE SECOND SCHEDULE.

In this Schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Company charges any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

- (A) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by him at the rate of threepence per unit ;
- (B) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of twopence per unit.

SECTION 2.

Where the Company charges any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure of the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under any regulations made under this Act.

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